

GZ: 2021-0.643.804 dated June 9, 2022 (Case Number: DSB-D124.4055)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION SPEECH

The Data Protection Authority decides on the data protection complaint of Veronika A*** (complainant), represented by Dr. Johanna S***, attorney in **** G***stadt, B***gasse *3, dated May 5, 2021, supplemented on May 28, 2021, against the District Court N*** (respondent) due to alleged violation of the right to confidentiality as follows:

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The complaint is dismissed as unfounded.

Legal bases: Art. 51 para. 1, Art. 55, Art. 57 para. 1 lit. f, and Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; §§ 1 para. 1 and para. 2, 18 para. 1, as well as 24 para. 1 and para. 5 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended; §§ 1, 7, 33 para. 1 lit. b, 87, as well as 94 para. 1 of the General Land Register Act 1955 (GBG), Federal Law Gazette No. 39/1955 as amended.

REASONING

A. Submissions of the Parties and Procedural History

1. In a submission dated May 5, 2021, supplemented on May 28, 2021, the complainant, through her legal representative, claimed a violation of the right to confidentiality and summarized her position as follows:

The complainant was divorced on November 16, 2020, in the proceedings 25 C 45/20t. Part of the divorce proceedings was the conclusion of a "divorce settlement agreement," in which the division of jointly owned properties was agreed upon. The proceedings were conducted by the respondent. Subsequently, the respondent, as the competent court, registered the divorce settlement agreement (including declarations of waiver) to TZ 481/2021 in the land register (collection of documents), which resulted in third-party effects. This registration allowed for public inspection, as anyone could inspect the land register and obtain excerpts according to § 7 para. 2 GBG. In this case, sensitive data that went far beyond the necessary disclosure of property rights were published. Specifically, these were agreements regarding other assets not related to the land register, which cannot have third-party effects and must not be made public for other reasons. This constitutes an intrusion into family privacy. The (material) scope of application of the GDPR is opened, as both the term "processing" and the term "personal data" in the sense of Art. 4 GDPR are fulfilled. There is no justification for the processing in the sense of Art. 6 para. 1 GDPR. For comparison, reference is made to the inheritance proceedings, in which the entire result or the "final decision" of the proceedings is not disclosed to the public. Furthermore, it is suggested that the Data Protection Authority submit the provision of § 7 para. 2 GBG to the Constitutional Court for constitutional review. As evidence, the complainant submitted an excerpt from the main book of the land register dated May 28, 2021, as well as a copy of the settlement document dated November 19, 2020.

2. By decision dated June 2, 2021, the Data Protection Authority requested the respondent to provide a statement.

3. In a submission dated June 14, 2021, the respondent stated as follows:

According to the provisions of § 3 para. 1 lit. b (presumably meant: § 33 para. 1 lit. b GBG), registrations in the land register based on court-approved settlements are possible. The complainant requested the registration of the property rights through an "ERV application" by her legal representative, whereby the divorce settlement (divorce settlement agreement) dated November 19, 2020, was fully attached as a document. The application was subsequently approved, and the divorce settlement was stored in the collection of documents in the full extent transmitted by the complainant. The task of the respondent is to fully incorporate the submitted documents into the collection of documents, not to review submissions for data protection compliance at their discretion and possibly to

shorten legally relevant documents.

4. By decision dated August 24, 2021, the Data Protection Authority granted the complainant the right to be heard.

5. In a submission dated September 14, 2021, the complainant stated that she agreed with the respondent in that § 7 GBG does not allow for a data protection review of submitted documents by the competent court. However, it was noted that the submitting party is also not allowed to make reductions at its discretion. The legislator failed at this point to impose restrictions on the court or the party or to allow for limitations. It is therefore suggested again that this provision be submitted to the Constitutional Court for review.

B. Subject of the Complaint

The subject of the complaint is the question of whether the respondent violated the complainant's right to confidentiality by registering a (judicial) divorce settlement in the land register.

Collection of Documents of the Land Register has been fully recorded and thus made accessible to the public regarding the data of the complainant.

C. Findings of Facts

1. The complainant was legally divorced on November 16, 2020, in the proceedings for GZ: 25 C 45/20t. Part of this procedure was the conclusion of a court divorce settlement, dated November 19, 2020, in which the division of properties between the complainant and her ex-spouse was agreed upon. Furthermore, this settlement contains information regarding spousal maintenance (specifically: waiver), mutual compensation payments, division agreements concerning movable assets (pictures, vehicles), documents and insurances, as well as regulations concerning further (judicial) proceedings.

2. By application dated January 21, 2021, the complainant, through her legal representation, requested from the respondent, which is the competent land register court, the registration of the agreement mentioned in point C.1, which was submitted without extensive or substantive restrictions via Electronic Legal Communication (ERV).

3. Subsequently, the application mentioned in point C.2 was granted by the respondent, and the submitted documents, particularly the divorce settlement mentioned in point C.1, were fully incorporated into the collection of documents of the land register.

Evidence Assessment: The findings made are based on the consistent submissions of the respondent and the complainant, as well as on the unobjectionable documents submitted by the latter.

D. From a legal perspective, it follows:

As can be inferred from the findings, the respondent in the proceedings is a court (competent for land register matters).

According to Art. 55 para. 3 GDPR, supervisory authorities are not responsible for the oversight of processing carried out by courts in the context of their judicial activities, whereby Recital 20 of the GDPR states that this is intended to serve the independence of the judiciary in the exercise of its judicial tasks, including its decision-making.

Although the wording of the GDPR itself does not explicitly indicate which activities of a court are specifically "judicial," reference should be made to the case law of the CJEU regarding Art. 267 TFEU, which states that not every judicial activity qualifies for the submission of preliminary ruling requests. For example, the CJEU has rejected the preliminary ruling requests of two Austrian regional courts in their capacity as commercial register courts on the grounds that these courts did not have to decide on a legal dispute but acted as authorities maintaining the commercial register (see the decision of January 22, 2002, C-447/00, and the judgment of January 15, 2002, C-182/00).

This can be analogously applied to the present case, as a land register court similarly does not have to decide on a legal dispute but merely maintains a public register – for the registration and visibility of property rights. Consequently, in such cases, according to the case law of the CJEU, there is no "judicial activity" (see also Kodek in Kodek, Land Register Law2 § 75 GBG Rz. 4 referring to the case law of the CJEU).

Furthermore, it should be noted that the recent judgment of the CJEU of March 24, 2022, Case C-245/20, in which it dealt with the term "judicial activity" – due to the (still existing) lack of connection to a "judicial activity" and thus a completely different factual situation – does not have any modeling effects on the prevailing case law of the data protection authority (see, for example, the decision of the

data protection authority of January 22, 2019, GZ: DSB-D123.848/0001-DSB/2019).

In a first step, it should therefore be noted that in the present case, the jurisdiction of the data protection authority to handle the complaint is given.

According to § 1 para. 1 DSG, everyone has the right, particularly with regard to the respect for their private and family life, to the confidentiality of their personal data, as long as there is a legitimate interest in it.

Interventions by a state authority are only permissible based on laws (§ 1 para. 2 DSG). This obligation applies not only to the administration but also to the organs of the judiciary and legislation (Bresich/Dopplinger/Dörnhöfer/Kunnert/Riedl, DSG (2018) § 1 Rz. 11).

The complainant is to be agreed with in that the land register is public according to § 7 GBG and therefore – in principle – anyone can inspect it. This also includes the collection of documents according to § 1 GBG (see also Höller in Kodek, Land Register Law2 § 7 GBG Rz. 5).

In this respect, the scope of protection of § 1 DSG, as well as – due to automated processing – the material scope of application of the GDPR is opened.

Incorporations can be made according to § 33 para. 1 lit. b GBG, among others – as in the present case – based on (enforceable) settlements recorded by courts.

The documents on the basis of which an entry is to be made must be submitted in original form in accordance with § 87 Abs. 1 GBG. In the case of judicial settlements, this requirement is fulfilled by the submission of a settlement copy (Kodek in Kodek, Grundbuchsrecht2 § 87 GBG Rz. 10).

The scope of examination in this regard by the competent court (specifically: the respondent) is derived from § 94 GBG, whereby neither general legitimate interests of third parties nor data protection considerations are part of the examination criteria.

In this respect, a mere partial submission of the divorce settlement, as claimed by the appellant, was or would be legally inadmissible and therefore not possible for the respondent.

Furthermore, it should be noted that the appellant – as established – has submitted the divorce settlement in its entirety anyway.

Apart from that, the submission of a shortened form would only be possible in the expressly provided exceptional cases (§ 146 Abs. 1 GeO, § 79 Abs. 5 GOG or § 417 ZPO), which was not claimed by the appellant at any time.

The OGH has stated in this context that – apart from the aforementioned cases – the content of the divorce settlement must be fully reproduced and the submission of a partial copy of a divorce settlement contradicts § 87 Abs. 1 GBG (OGH 25.1.2016, 5 Ob 250/15y). The case of "mere crossing out" would be treated differently (OGH 5 Ob 250/15y, NZ 2016/117 (342) referring to OGH 5 Ob 182/98w).

Whether and to what extent the aforementioned provisions are in accordance with the fundamental right to data protection or EU law requirements is, however, not covered by the examination competence of the data protection authority. Such examination competence solely lies with the Constitutional Court according to Art. 140 B-VG or the CJEU according to Art. 267 TFEU, whereby their invocation by the data protection authority, contrary to the opinion of the appellant, is not considered due to the lack of a corresponding legal basis.

Since the publication of the personal data of the appellant in the matter at hand by the respondent is thus legally covered, the appeal was to be dismissed.

It was therefore to be decided accordingly.

[Note for the editor: For the current legal situation regarding the possibility of (data protection-compliant) partial copies of a divorce (settlement) as a basis for land register applications, see:

- ECtHR 06.04.2021, Appl 5434/17

- OGH 30.03.2022, 8 Ob 3/22g, Zak 2022/308 S 174 – Zak 2022,174 = jusIT 2022/65 S 159 (Thiele) – jusIT 2022,159 (Thiele) = ÖJZ 2023/135 S 823 - ÖJZ 2023,823 = ZöR 2023,729]